

HOUSE No. 5279

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 23, 2026.

The committee on Transportation, to whom was referred the Message from her Excellency the Governor (accompanied by bill, House, No. 4987) recommending legislation relative to financing long-term improvements to municipal roads and bridges, reports recommending that the accompanying bill (House, No. 5279) ought to pass.

For the committee,

JAMES ARCIERO.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act financing long-term improvements to municipal roads and bridges.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to finance improvements to the commonwealth's transportation system, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. To provide for a program of transportation development and improvements,
2 the sums set forth in sections 2 through 2B, inclusive, for the several purposes, and subject to the
3 conditions specified in this act, are hereby made available, subject to the laws regulating the
4 disbursement of public funds. The sums made available in this act shall be in addition to any
5 amounts previously appropriated or made available for these purposes.

6 SECTION 2.

7 MASSACHUSETTS DEPARTMENT OF TRANSPORTATION

8 Highway Division

9 6122-2730 For the construction and reconstruction of municipal ways as described in
10 clause (b) of the second paragraph of section 4 of chapter 6C of the General Laws; provided, that

a city or town shall comply with the procedures established by the Massachusetts Department of Transportation; provided further, that a city or town may expend, without further appropriation, for these projects amounts not in excess of the amount provided to the city or town under this item upon preliminary notice of such amount, which shall be provided by the department to the city or town not later than March 1 of each year; and provided further, that the commonwealth shall reimburse funds to a city or town under this item, subject to the availability of funds as provided in section 9G of chapter 29 of the General Laws, within 30 days after receipt by the department of a request for reimbursement from the city or town; provided further, that the department shall expend up to \$100,000,000 for construction and reconstruction of municipal ways which shall be allocated to municipalities based on local road mileage under procedures established by the department; provided further, that the department shall encourage long-term capital plans to be developed by a city or town describing how they will use this funding; and provided further, that the city or town shall provide to the department its certification by the city or town that actual expenses have been incurred on projects eligible for funding under this item and that the work has been completed to the satisfaction of the city or town according to the specifications of the project plan, and in compliance with applicable laws and procedures established by the department.....\$300,000,000

SECTION 2A.

MASSACHUSETTS DEPARTMENT OF TRANSPORTATION

Highway Division

6121-2717 For the bridge and pavement lifecycle asset management program, including, but not limited to, design, construction and repair of, or improvements to, non-federally aided

roadway and bridge projects and for the nonparticipating portion of federally-aided projects and for the construction, reconstruction, resurfacing, repair and improvement of pavement and surface conditions on non-federally aided roadways, including, but not limited to, state numbered routes and municipal roadways; provided, that expenditures from this item may include the costs of engineering, design, permitting, climate change adaptation and resilience and other services essential to projects under this item; provided further, that funds may be expended from this item for matching grants to municipalities related to repair of surface conditions on paved and unpaved public ways; provided further, that the department may expend funds from this item to improve the condition of bicycle and pedestrian accommodations related to such roadway, bridge, pavement and resurfacing projects; and provided further, that the department shall consider lifecycle asset management and resilient design with respect to projects under this item..... \$500,000,000

6121-2768 For a program of transportation capital projects to support development of housing, including but not limited to, the costs of planning, design and engineering and other services for those projects rendered by commonwealth employees and consultants; construction and reconstruction of roadways, bridges, pavements, culverts, bicycle and pedestrian infrastructure, safety and accessibility improvements, landscape improvements, lighting, climate resilience, and stormwater management improvements; provided, further, that the secretary of transportation shall consult with the secretary of housing and livable communities and the secretary for administration and finance on prioritization, selection and implementation of transportation capital projects to be funded from this item; provided, further, that this item may be used by the secretary of transportation to provide grants to municipalities for transportation capital projects to support development of housing in those municipalities, in consultation with

56 the secretary of housing and livable communities and the secretary for administration and
57 finance\$200,000,000

58 6121-2737 For the Parkway Resilience Improvement and Safety Modernization (PRISM)
59 investment program, an accelerated deferred maintenance, modernization, and safety program
60 for multi-modal transportation infrastructure under the care and control of the department of
61 conservation and recreation, including but not limited to the planning, design, construction,
62 reconstruction, repair, improvement, and rehabilitation of transportation infrastructure; the costs
63 of planning, design and engineering and other services for those projects rendered by
64 commonwealth employees and by consultants; provided, that funds may be expended for
65 roadways, bridges, culverts, pavements, multi-modal transportation infrastructure, bicycle and
66 pedestrian infrastructure, safety and accessibility improvements, intersection and landscape
67 improvements, lighting, traffic signals and signage, and climate resilience and stormwater
68 management improvements associated with transportation capital projects on transportation
69 infrastructure under the care and control of the department; provided, further, that the secretary
70 of transportation shall consult with the secretary of energy and environment and the secretary for
71 administration and finance on coordination of transportation capital projects to be funded from
72 this item, and the design of any project funded by this item shall be consistent with applicable
73 historic parkways preservation treatment guidelines and parkways master plan to the extent
74 practicable.....\$200,000,000

75 SECTION 2B.

76 MASSACHUSETTS DEPARTMENT OF TRANSPORTATION

77 Office of the Secretary

78 6622-2747 For the purpose of implementing rail improvements pursuant to chapter 161A
79 of the General Laws, including upgrading and modernizing vehicles, new vehicle procurements,
80 planning, design and acquisition of commuter rail
81 locomotives.....\$200,000,000

82 SECTION 3. Item 6121-2214 of section 2 of chapter 176 of the acts of 2022 is hereby
83 amended by striking out the figure “2,812,457,157” and inserting in place thereof the following
84 figure:- 5,112,457,157.

85 SECTION 4. Item 6121-2217 of section 2A of said chapter 176 is hereby amended by
86 striking out the figure “1,270,000,000” and inserting in place thereof the following figure:-
87 2,070,000,000.

88 SECTION 5. Item 6121-2228 of section 2B of said chapter 176 is hereby amended by
89 striking out the figure “25,000,000” and inserting in place thereof the following figure:-
90 90,000,000.

91 SECTION 6. Item 6720-2258 of section 2F of said chapter 176 is hereby amended by
92 striking out the figure “10,000,000” and inserting in place thereof the following figure:-
93 22,000,000.

94 SECTION 7. Section 41 of said chapter 176 is hereby amended by striking out the figure
95 “611,800,000” and inserting in place thereof the following figure:- 1,071,800,000.

96 SECTION 8. Section 42 of said chapter 176 is hereby amended by striking out the figure
97 “1,425,000,000” and inserting in place thereof the following figure:- 2,290,000,000.

SECTION 9. Section 46 of said chapter 176 is hereby amended by striking out the figure “1,750,860,795” and inserting in place thereof the following figure:- 1,762,860,795.

SECTION 10. To meet the expenditures necessary in carrying out sections 2 through 2B, inclusive, the state treasurer shall, upon request of the governor, issue and sell bonds of the commonwealth in an amount to be specified by the governor from time to time but not exceeding, in the aggregate, \$1,400,000,000. All bonds issued by the commonwealth as aforesaid shall be designated on their face, Commonwealth Transportation Improvement Act of 2026, and shall be issued for a maximum term of years, not exceeding 30 years, as the governor may recommend to the general court under section 3 of Article LXII of the Amendments to the Constitution. All such bonds shall be payable not later than June 30, 2066, pursuant to said section 3 of said Article LXII. All interest and payments on account of principal on these obligations shall be payable from the General Fund or the Commonwealth Transportation Fund.

SECTION 11. Notwithstanding any general or special law to the contrary, bonds and interest thereon issued under sections 2 through 2B, inclusive, shall be general obligations of the commonwealth; provided, however, that any bonds issued by the state treasurer under said sections, shall, upon the request of the governor, be issued as special obligation bonds pursuant to section 20 of chapter 29 of the General Laws; provided further, that in deciding whether to request the issuance of particular bonds as special obligations, the governor shall take into account: (i) generally prevailing financial market conditions; (ii) the impact of each approach on the overall capital financing plans and needs of the commonwealth; (iii) any ratings assigned to outstanding bonds of the commonwealth and any ratings expected to be assigned by any nationally-recognized credit rating agency to the bonds proposed to be issued; and (iv) any applicable provisions of a trust agreement or credit enhancement agreement entered into pursuant

121 to said section 2O of said chapter 29. All interest and payments on account of obligations issued
122 under this section as special obligation bonds pursuant to said section 2O of said chapter 29 shall
123 be payable from the Commonwealth Transportation Fund, established in section 2ZZZ of said
124 chapter 29, solely in accordance with said section 2O of said chapter 29, and such bonds shall
125 not be included in the computation of outstanding bonds for purposes of the limit imposed by the
126 second paragraph of section 60A of said chapter 29, nor shall debt service with respect to such
127 bonds be included in the computation of the limit imposed by section 60B of said chapter 29.